EQUIPMENT AND SERVICE AGREEMENT

This Equipment and Service Agreement (the "Agreement") is entered into as of February 01, 2024 (the "Effective Date") between **Harbor & Pine Coffee Equipment**, with offices at 212 Pier Street, Suite 4, Oakland, CA 94607 ("Supplier"), and **Sunbird Cafe Group**, with offices at 1820 Shattuck Ave, Berkeley, CA 94709 ("Buyer").

The parties agree as follows:

1. Term

This Agreement commences on the Effective Date and continues for twenty-four (24) months, renewing automatically for successive twelve (12) month periods unless either party gives sixty (60) days written notice of non-renewal.

2. Orders

Buyer may order Products by purchase order referencing this Agreement. Each accepted purchase order is governed exclusively by this Agreement, and any conflicting terms on Supplier's acknowledgments or invoices are rejected.

3. Service

Supplier shall provide on-site espresso equipment service at Buyer's locations at the hourly rate in Supplier's price list, billed in half-hour increments.

4. Delivery

Supplier shall deliver Products FOB Buyer's facility at 1820 Shattuck Ave, Berkeley, CA 94709 unless otherwise agreed. Freight charges, if any, shall be separately itemized on the invoice.

5. Warranty

Supplier warrants that Products conform to specifications and are free from defects in materials and workmanship for twelve (12) months from delivery.

6. Pricing; Import Duties

Prices for imported Products are inclusive of customs duties, tariffs and similar import charges borne by Supplier. Supplier shall give Buyer thirty (30) days notice of any price change attributable to a change in such charges. In the event any duty, tariff or similar charge paid by Supplier with respect to Products sold to Buyer is refunded to Supplier by any governmental authority, Supplier shall pass through to Buyer a pro rata share of such refund attributable to Products purchased by Buyer during the period the charge was in effect, net of Supplier's reasonable documented costs of recovery, within ninety (90) days of receipt.

7. Confidentiality

Each party shall keep the other's non-public business information confidential and use it only to perform this Agreement.

8. Limitation of Liability

Neither party is liable for indirect, incidental or consequential damages arising out of this Agreement. Supplier's aggregate liability shall not exceed amounts paid by Buyer in the twelve (12) months preceding the claim.

9. Termination

Either party may terminate this Agreement for material breach not cured within thirty (30) days of written notice.

10. Governing Law

This Agreement is governed by the laws of the State of California without regard to its conflict of laws principles.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Harbor & Pine Coffee Equipment

By: _____
Name: Jordan Reyes
Title: VP, Sales

Sunbird Cafe Group

By: _____
Name: Priya Natarajan
Title: Controller